

24STCV31938 24STCV31938

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-15

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Case Number: 24STCV31938 Hearing Date: July 15, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

STEPHON WATFORD

vs.

PROMISE ASSISTED LIVING, LLC

Case

No.: 24STCV31938

Hearing Date: July 15, 2026

Plaintiff's motion to compel the second deposition of Defendant

Zulficar Gregory Restum is GRANTED. However, the Court declines to award sanctions at this time.

On 12/4/2024,

Plaintiff Stephon Watford (Plaintiff) filed suit against Promise Assisted Living, LLC, alleging: (1) whistleblower retaliation; (2) retaliation and discrimination; and (3) wrongful termination.

On 6/11/2026, Plaintiff moved to
compel the second deposition of Defendant Zulficar Gregory Restum.

Discussion

Plaintiff moves to compel Defendant
Restum to appear and testify for a second deposition. Plaintiff argues that
good cause exists to compel the second deposition because “since his deposition
was taken, Defendants have materially changed their positions on factual issues
in this case and have produced new documents that were previously improperly
withheld and/or fabricated to support Defendants’ defenses in this case.”
(Motion ii: 7-9.)

In particular, Plaintiff points to
discovery provided for the first time in response to his motion for terminating
sanctions which included fax transmissions and a declaration obtained from
Jerrold Griffin. Plaintiff has not had an opportunity to depose Restum about
this new evidence, as it was unknown at the time.

In opposition, Defendant contends
that further deposition is unnecessary because he does not rely on the Griffin
declaration in support of his motion for summary judgment.

However, Defendant’s motion for
summary judgment concerns Plaintiff’s cause of action for defamation, which
directly concerns allegations relevant to the APS report. As such, Plaintiff’s
ability to investigate Defendant’s newly provided evidence related to the APS
reporting is highly relevant to his ability to oppose the motion for summary
judgment.

Based on the foregoing, Plaintiff’s
motion to compel the second deposition of Defendant Zulficar Gregory Restum is
granted. However, the Court declines to award sanctions at this time.

It is so
ordered.

Dated:
July , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.